

PROCEDURE OF WARNING

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A, (hereinafter, the complainant) on March 11, 2023, filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons on which the complaint is based are as follows:

The complainant states that in a property located at ***ADDRESS.1, there is a video surveillance system with cameras directed at the public road, without prior administrative authorization for this and without being properly signposted with the required informative signs of the monitored area, with the respondent being responsible for said camera.

It provides images and a video, evidencing the situation of the contested camera.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The act of forwarding and request for information was notified to the respondent on April 4, 2023, by postal means, in accordance with the provisions of Articles 41 and 42 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, as evidenced by the delivery receipt in the file. The respondent has not responded to the act of forwarding and request for information notified.

THIRD: On June 11, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On December 18, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the respondent for the alleged infringement of Articles 5.1.c) and 13 of the GDPR, classified under Article 83.5 of the GDPR.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

FIFTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was collected on January 2, 2024, as evidenced by the acknowledgment of receipt in the file.

SIXTH: The respondent made allegations on January 3, 2024, indicating that the camera is disconnected and that they already submitted a "responsible declaration model" to the AEPD on April 4, 2023, regarding this matter. Presumably, they mean a model of responsible declaration, in fact.

SEVENTH: The submission of the responsible declaration to the AEPD could not be verified, which is why on February 8, 2024, the instructor requested the respondent to indicate the registration number and date of said submission. This request is recorded as received, with acknowledgment of receipt by postal means on February 14, 2024. As of the date of this resolution, no response has been received regarding this matter.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following

FACTS

FIRST: On the exterior facade of the property located at ***ADDRESS.1, there is a video surveillance

system with cameras directed at the public road for which the respondent is responsible.

SECOND: The video surveillance is not properly signposted with the required informative signs.

LEGAL GROUNDS

I

Competence

According to the provisions of Articles 47, 48.1, and 64.3 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/8

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data. Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations. It is therefore pertinent to analyze whether the processing of personal data (images of individuals) carried out through the reported video surveillance system complies with the provisions of the GDPR.

III

Unfulfilled obligation

Article 6.1 of the GDPR establishes the circumstances that allow the processing of personal data to be considered lawful. Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that individuals or legal entities, public or private, may carry out the processing of images through camera or video camera systems with the aim of preserving the safety of individuals and property, as well as their facilities.

Article 12.1 of the GDPR indicates that anyone who carries out the processing of personal data, such as capturing images through a video surveillance system, must provide the interested parties with the information indicated in Articles 13 and 14 of the GDPR. In order for the information duty provided in Article 12 of the GDPR to be fulfilled concisely and understandably for the affected party, the aforementioned Article 22 of the LOPDGDD provides for a "layered information" system in relation to video surveillance.

In this sense, the first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

The information in the second layer must be available in a place easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a website, and must refer to the remaining elements of Article 13 of the GDPR.

It is not necessary to specify the precise location of the video surveillance equipment. This information duty will be considered fulfilled by placing an informative device in a sufficiently visible location, and at a minimum, at the entrances to the monitored areas, whether they are indoors or outdoors. In the event that the monitored space has several access points, this distinguishing mark of the monitored area must be present at each of them. This information must be provided in advance - considering Recital 39 of the GDPR. The objective is to make the context of the surveillance clear.

The processing of personal data is subject to the other principles of processing contained in Article 5 of

the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing operation, only the relevant personal data that is pertinent and strictly necessary to fulfill the purpose for which it is processed may be processed. The processing must be adjusted and proportional to the purpose it is directed towards. The relevance in the processing of data must occur both at the moment of data collection and in the subsequent processing of the same.

According to the above, the processing of excessive data must be restricted or the data must be deleted. The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places, unless there is governmental authorization, can only be carried out by the Security Forces and Corps.

On some occasions, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the purpose of security. That is, cameras and video cameras installed for security purposes may not capture images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location.

And, in such an extraordinary case, the cameras may only capture the minimum necessary portion to preserve the safety of individuals and property, as well as their facilities. Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, it must not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space. The installed cameras may not capture images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely transiting the area.

Images may not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the individuals present in those spaces.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/8

Likewise, it is considered disproportionate to capture images in private spaces, such as changing rooms, lockers, or workers' rest areas.

IV

Administrative infringement

It is considered that the facts presented, the installation by the responding party of a surveillance camera on the facade of their residence capable of capturing the public road, violate the provisions of Article 5.1 c) of the GDPR, which states that personal data shall be: "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed."

Furthermore, the absence of the mandatory informative signs indicating a monitored area breaches the obligation of the responding party to inform the data subject of the collection of personal data, thus also violating Article 13 of the GDPR.

The described facts could constitute an infringement classified under Article 83.5 of the GDPR, which states the following: "Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the preceding financial year, opting for the higher amount: (...)

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; "

b) the rights of data subjects under Articles 12 to 22; "

For the purposes of the statute of limitations for infringements, the alleged infringement shall be subject to a three-year limitation period, in accordance with Article 72 of the LOPDGDD, which classifies the following conduct as very serious:

Article 72. Infringements considered very serious.

1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements shall be considered very serious and shall be subject to a three-year limitation period, which involve a substantial violation of the articles mentioned therein and, in particular, the following:
a) "The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this organic law."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/8

VI

Proposal for warning

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in section 2.b) of Article 58 "Powers" the following:

"Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation; (...)"

For its part, Article 64 of the LOPDGDD, which regulates the "Form of initiation of the procedure and duration," states in its third section that:

"3. When appropriate, considering the nature of the facts and duly taking into account the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Agency for Data Protection, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specified manner and within the specified time frame.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it shall expire, and consequently, the proceedings shall be archived. The provisions of the second and third paragraphs of section 2 of this article shall apply in this case."

In the present case, given the circumstances present in this procedure, it is deemed appropriate to issue a warning for the infringement of the violated articles.

VII

Adoption of measures

Article 58.2 d) of the GDPR indicates that each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specified manner and within a specified time frame..."

In the present case, the responding party must proceed, within 30 days from the receipt of this resolution, to:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/8

□

To prove the removal of the camera or video camera system from the current location or its reorientation, in such a way that the viewing of the images does not capture public thoroughfare or, if applicable, only captures the minimum portion of public areas necessary to ensure the safety of persons, property, and facilities.

☐

To prove the placement, if applicable, of the informational device in the monitored areas (it must identify, at least, the existence of processing, the identity of the responsible party, and the possibility of exercising the rights provided in said provisions), placing this device in a sufficiently visible location, both in open and closed spaces.

☐

To prove that the information referred to in Article 13 of the GDPR is made available to the affected parties.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the resolution of this procedure may be considered an administrative infraction in accordance with the provisions of the GDPR, classified as an infraction in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ISSUE A WARNING to B.B.B., with NIF ***NIF.1, for violation of Article 5.1.c) and another for the violation of Article 13 of the GDPR, both classified in Article 83.5 of the GDPR.

SECOND: TO ORDER B.B.B., with NIF ***NIF.1, pursuant to Article 58.2.d) of the GDPR, within 30 days from the date this resolution becomes final and enforceable, to prove compliance with Article 5.1.c) of the GDPR by

☐

Removing the camera or video camera system from the current location or its reorientation, in such a way that the viewing of the images does not capture public thoroughfare or, if applicable, only captures the minimum portion of public areas necessary to ensure the safety of persons, property, and facilities.

THIRD: TO ORDER B.B.B., with NIF ***NIF.1, pursuant to Article 58.2.d) of the GDPR, within 30 days from the date this resolution becomes final and enforceable, to prove compliance with Article 13 of the GDPR by

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

8/8

☐

The placement, if applicable, of the informational device in the monitored areas (it must identify, at least, the existence of processing, the identity of the responsible party, and the possibility of exercising the rights provided in said provisions), placing this device in a sufficiently visible location, both in open and closed spaces.

☐

Making available to the affected parties the information referred to in Article 13 of the GDPR.

FOURTH: TO NOTIFY this resolution to B.B.B..

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party

expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation proving the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es